



File No.: EXP202211913

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant), on November 7, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against Mr. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system located at CALLE ***DIRECCIÓN.1, HUELVA, with indications of a possible violation of the provisions of Articles 6.1 and 13 of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that the respondent is a neighbor of the property located at Calle ***DIRECCIÓN.1 in Huelva and that he has installed, next to the door of his residence, a video surveillance camera that captures images of the community landing, without prior authorization from the Community and without being signposted with the required informational signs of the monitored area.

An image of the camera's location is provided.

The documents submitted are: - Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not collected by the responsible party; it was returned on January 9, 2023, due to "absent delivery" on December 27 and 29, 2022.

Upon reiterating the forwarding by certified mail, it was again returned on January 31, 2023, due to "absent delivery" on January 19 and 23, 2023.

Upon reiterating the forwarding by certified mail, it was again returned on February 13, 2023, due to "absent delivery" on February 2 and 3, 2023.

Given that the three forwardings of the complaint have not been collected by the respondent, no response has been received to the forwarding letter.

THIRD: On February 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On March 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 13 of the GDPR and Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

Consulting the database of this agency, the Agreement to Initiate PS/00074/2023 was published in the B.O.E. on ***FECHA.1.

Article 64.2.f) of the LPACAP -provision of which the respondent was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not made allegations to the initiation agreement of the

file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

First. The facts arise from the complaint dated 07/11/22, which states the following:

“that without prior notice the neighbor from below has proceeded to place a camera that focuses on the place where everyone accesses to enter the community without having requested permission or at least communicated its installation. Since there is not even a warning sign, all the neighbors are gradually finding out and complaining about it (...)” –page no. 1--.

Second. It is accredited that the main responsible party is B.B.B., with NIF ***NIF.1.

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Third. It is established that the respondent has a video surveillance system directed towards common areas, processing data of third parties without being authorized by the Owners' Meeting.

Fourth. It is established that there is an absence of a sign or informative label indicating that it is a video-surveilled area or the use that may be made of the images of the co-owners.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

An image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system complies with the provisions of the GDPR.

III

In this case, the complaint dated 07/11/22 is examined, through which the alleged irregularity committed by an owner of the property "who has installed a video surveillance system without authorization for it" is reported.

The cameras installed on the exterior of the homes, aside from the implications they may have within the framework of the current Horizontal Property Law (LPH), may have repercussions on data protection regulation, as there is an undetermined processing of third-party data affecting common areas.

The installation of these must be communicated to the entire community of neighbors, included in the corresponding agenda item, and the presence of these must be authorized by the entire community of owners.

Without the corresponding authorization, the presence of these lacks a legitimizing basis for the processing of data under the current data protection regulations, such that such conduct would infringe the applicable regulations.

The legitimizing bases are a list of situations or specific assumptions established by law, in which it is possible to process personal data.

Article 6, section 1, letter e) of the GDPR states:

“e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

Once authorized, the presence of the cameras must be duly signposted, without prejudice to the obligation of the installation responsible to comply with the other legally required obligations (e.g., informing that it is a video-surveilled area, etc.).

For the installation of surveillance services in a community of owners, the votes in favor of 3/5 of the total owners are needed, which must also represent at least 3/5 of the participation quotas, without prejudice to what may be stated in the Statutes of the community.

The purpose of these types of devices is to protect the home and its belongings, with some owners considering that their presence outside serves as a deterrent against possible thefts, although they do not take into account the other affected rights or the inconveniences for the other co-owners who feel intimidated by their mere presence or the implications of being placed on a common wall.

The person responsible for the installation of any type of "device" that proceeds to obtain images of third parties (data) must be able to demonstrate convincingly that it strictly complies with the requirements set by the Legislator, which must be analyzed by this agency in the context of the specific case.

Consequently, the first thing to do before starting to process personal data is to identify the legitimizing basis because, if it does not exist, the processing is unlawful regardless of whether the other regulatory requirements are met.

The lack of the aforementioned authorization leads to the commission of the described infringement, as it lacks the that allows it to install a device for capturing images (personal data), given that, as we recall, the camera installed externally affects an area owned by the Community of owners, hence it is also considered that there are less invasive measures, such as placing it on a common wall.

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the installation of cameras inside the home or even a sound alarm equipped with motion detection, but always within the private residence.

IV

In accordance with the evidence available in this sanctioning procedure, it is considered that the respondent has a video surveillance camera system that affects the rights of third parties without justified cause, as they are disproportionately oriented towards community areas without being duly authorized by the collective of property owners of the building.

Likewise, conducting a presumed assessment of the rights at stake, it is noted that cameras inside the home are also effective in protecting against potential burglaries, preventing intimidation and disturbance caused by their presence to the neighbors, who feel their personal freedom affected as it impacts community areas.

The known facts are therefore constitutive of an infringement, attributable to the respondent, for violating the content of Article 5.1 c) of the GDPR.

Article 72, section 1, letter a) establishes a statute of limitations of three years for “infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: a)

The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

V

From the initial evidence provided, the presence of an informative sign indicating that it is a

video-surveillance area has not been confirmed, reminding of the necessity of such a sign if the cameras are located outside the building.

Article 22, section 4 of the LOPDGDD states: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device."

The aforementioned facts imply an infringement of the content of Article 13 of the GDPR, due to the lack of informative sign(s) with an effective address to which one could direct inquiries or indicate, if applicable, the main responsible party for the processing of the data.

Article 13 of the GDPR "Information to be provided when personal data are obtained from the data subject"

1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements "shall prescribe after three years" and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled as already indicated.

VI

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

b) The rights of the data subjects under Articles 12 to 22 (...).

In motivating the sanction, the lack of initial allegations in response to the request from this body is taken into account, although the evidence provided confirms the presence of the device(s) with poor orientation, as well as the absence of informative sign(s), which denotes serious negligence in the described conduct, as well as failure to comply with the requirements of the governing bodies of the building; therefore, a sanction of €600 (300€ + 300€) is agreed upon for the infringement of Articles 6 and 13 of the GDPR, a sanction situated at the lower end of the scale for such behaviors.

VII

The text of the resolution establishes what the committed infringements have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the type of procedures, mechanisms, or specific instruments for implementing them being the responsibility of the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is warned that failure to comply with the order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its article.

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83.5 and 83.6, such conduct may lead to the initiation of further administrative sanctioning proceedings.

It is reminded that the presence of the camera in the community area may give rise to new claims before this body, taking into account the recommendations of this body when opening a new sanctioning procedure, where the criteria for grading a new sanction to be imposed will be evaluated. Therefore, in accordance with the applicable legislation and having assessed the criteria for grading the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on Mr. B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR and Article 6.1 of the GDPR, classified under Article 83.5 letters a) and b) of the GDPR, a fine of €600 (€300 + €300).

SECOND: TO ORDER Mr. B.B.B., with NIF ***NIF.1, to comply with the following measure, pursuant to Article 58.2.d) of the GDPR, within ONE MONTH:

- To proceed with the removal of any type of device installed on the common wall that affects common areas, substantiating this with photographs showing the date and time of before and after.

THIRD: TO NOTIFY this resolution to Mr. B.B.B.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish

Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency does not receive knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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